

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Thomas J. Lo

Department C44

Hearing Date and Time: July 16, 2026 @ 1:30 PM

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5244. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.).

Appearances: Department C44 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C44 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5244 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	All Green Electronics Recycling, LLC vs. Funding Metrics, LLC 2026-01539367	1. Demurrer to Amended Complaint 2. Motion to Strike Portions of Complaint <i>Continued. See minute order dated 7/9/26 (ROA 38).</i>
2	A. V. vs. Brea Olinda Unified School District 2024-01383647	Motion for Bifurcation Defendant Brea Olinda Unified School District's motion for bifurcation is DENIED. (See Code Civ. Proc., §§ 598, 1048, subd. (b).) Defendant requests an order bifurcating the issue of "liability via the primary assumption of the risk doctrine" from causation and damages. (Ntc. of Mtn., p. 1; see Mtn. P&As at pp. 3, 9.) Contrary to defendant's contentions, the primary assumption of the risk doctrine does not provide a complete bar to liability in this case. The "primary assumption of the risk" doctrine is matter of duty. "Under the primary assumption of risk doctrine, there is no duty to eliminate or protect a plaintiff against risks that are inherent in a sport or [recreational] activity." (<i>Calhoon v. Lewis</i> (2000) 81 Cal.App.4th 108, 115; <i>Griffin v. The Haunted Hotel, Inc.</i> (2015) 242 Cal.App.4th 490, 493.) But this does not mean that there is no duty of any kind. Although there is no duty protect against risks inherent in the sport itself, it is well established that defendants do have a duty to use due care not to increase the risks to a participant over and above those inherent in the sport. (<i>Knight v. Jewett</i> (1992) 3 Cal.4th 296, 315-316; <i>Olson v. Saville</i> (2024) 98 Cal.App.5th 1066, 1070-1071; <i>Fazio v. Fairbanks Ranch Country Club</i> (2015) 233 Cal.App.4th 1053, 1059.) As applicable here, this means that "a coach or sport instructor owes a duty to a student not to increase the risks inherent in the learning process undertaken by the student." (<i>Kahn v. East Side Union High School Dist.</i> (2003) 31 Cal.4th 990, 996, 1005-1006, 1011.) More specifically, a coach owes a duty to not increase the risks to a student by acting "recklessly" or " 'totally outside the range of the ordinary activity' involved in teaching or coaching the sport." (<i>Id.</i> at p. 996.)

The complaint plainly alleges that the JV cheerleading coach, Haleigh Egge, did not have the proper training, qualifications, or certifications to teach acrobatic cheerleading to plaintiff or anyone else on the cheer team. (Compl. ¶ 17.) As a result, Egge failed to follow any basic injury or concussion protocols after plaintiff fell and hit her head on no less than three separate occasions during a single practice, and instructed plaintiff to return to the stunt even after she complained of pain and disorientation and began exhibiting obvious signs of a concussion, causing her to fall and strike her head again. (*Id.* ¶¶ 17-19.)

Multiple percipient witnesses, including the girls involved in the stunt, have testified that Egge was in fact coaching the JV team that day, as well as coaching and directing the stunt. (See Angeloff Decl. ¶¶ 5-7, Exs. 3-5.) Defendant has admitted that Egge did not have the required safety certifications to be coaching at the time of the incident on 8/22/23, including the certification for concussion training. (Angeloff Decl. ¶ 3, Ex. 1 [defendant's responses to RFA Nos. 10-13].) Defendant has further admitted that "Egge was not cleared to coach until September 18th, so she should not have made any effort in determining the competency of students to perform stunts on August 22nd," and that "[p]er [defendant] BOUSD policies, ... until coaches are cleared by the district, they are not to work with students." (*Id.* ¶ 4, Ex. 2 [defendant's response to special interrogatory No. 14].)

Defendant's motion ignores all of the foregoing, which clearly sets this case apart from the authorities that defendant attempts to rely on, where the coach's safety training and qualifications were not at issue. (See, e.g., *Aaris v. Las Virgenes Unified School Dist.* (1998) 64 Cal.App.4th 1112, 1119.)

Coaching and teaching acrobatic cheerleading to students without the requisite safety and concussion training is " 'totally outside the range of the ordinary activity' involved in ... coaching the sport." (*Kahn, supra*, 31 Cal.4th at p. 996.) California law emphasizes the importance of training school coaches in basic safety and "first aid, including, but not limited to, a basic understanding of the signs and symptoms of concussions ... and the appropriate response to concussions" (Ed. Code, § 35179.1, subd. (c)(6) [eff. Jan. 1, 2019 to Dec. 31, 2023]), and the California State Board of Education has promulgated statewide regulations establishing minimum qualifications with respect to such training for athletic coaches in schools. (See Cal. Code Regs., tit. 5, § 5593, subds. (a)(1)-(2), (b)(1)-(2); see also *id.*, §§ 5591, 5592; Ed. Code, § 35179.1, subd.

(b)(5) [version eff. Jan. 1, 2019 to Dec. 31, 2023, referencing the “current coaching regulations contained in Title 5 of the California Code of Regulations, including basic safety ... requirements”].) As discussed, defendant admits Egge did not meet these qualifications the day of the incident and should not have been coaching at that time. (See Angeloff Decl. ¶¶ 3-4, Ex. 1 [defendant’s responses to RFA Nos. 10-12], Ex. 2 [defendant’s response to special interrogatory No. 14].)

Furthermore, the Education Code affirmatively requires any district or school to immediately remove an athlete suspected of sustaining a concussion from the activity for the remainder of the day, and prohibits them from allowing the athlete to return to the activity until she is cleared by a licensed health care provider. (Ed. Code., § 49475, subd. (a)(1).) And the complaint alleges Egge did the opposite. (See Compl. ¶ 19.)

Where “a coach [knows] [the student] ha[s] been hit in the head, ha[s] time to evaluate her, and kn[ows] or should have known that returning her to play ha[s] the potential of significantly exacerbating her injury” but does so anyway (*Mayall v. USA Water Polo, Inc.* (9th Cir. 2018) 909 F.3d 1055, 1063), “the doctrine of assumption of the risk d[oes] not apply because the [coach] [has] actually increased the risk of injury beyond that inherent in the sport.” (*Lupash v. City of Seal Beach* (1999) 75 Cal.App.4th 1428, 1440; *Wattenbarger v. Cincinnati Reds, Inc.* (1994) 28 Cal.App.4th 746; see also *Ford v. Gouin* (1992) 3 Cal.4th 339, 346-350 [preliminary assumption of the risk also does not apply where a statute exists to protect persons in a class of which plaintiff is a member from the specific conduct in which defendant engaged]; Evid. Code, § 669 [negligence per se].)

As such, bifurcating the issue of “liability via the primary assumption of the risk doctrine” from causation and damages is unwarranted. Defendant had a duty not to increase the risks inherent in learning the sport and essentially admits it breached this duty, and the extent of defendant’s duty and breach will depend in part on plaintiff’s alleged injuries in any event (e.g., if plaintiff was already concussed after the first or second fall). (See *Sharufa v. Festival Fun Parks, LLC* (2020) 49 Cal.App.5th 493, 498 [though separate elements, the questions of duty and breach are intertwined; whether a defendant’s conduct amounts to a breach will depend on the nature/extent of the duty owed].)

Defendant shall give notice.

3	Batista vs. Tesla, Inc. 2025-01535459	Motion to Compel Arbitration Defendant Tesla, Inc.’s motion to compel arbitration is GRANTED. (See Code Civ. Proc. § 1281.2.) Defendant’s request for judicial notice is GRANTED. (See Evid. Code, § 452, subd. (d).) Plaintiffs Ashley Laurenbarrios Batista and Anton Sebastian Batista are hereby ORDERED to arbitrate their claims against Defendant consistent with the terms of the Arbitration Agreement set forth in the Motor Vehicle Order Agreement, dated 2/11/23 (MVOA). (See Kim Decl. at Ex. 1 [MVOA].) This matter is STAYED pending the arbitration proceedings. (Code Civ. Proc. § 1281.4.) <i>A status conference re: Status of ADR proceedings is set for February 5, 2027 at 8:30 a.m. in this department.</i> <i>The Case Management Conference currently scheduled for hearing on 8/7/26 is VACATED.</i> Defendant has met its burden to demonstrate the existence of an agreement to arbitrate the controversy. (See <i>Ramirez v. Golden Queen Mining Co., LLC</i> (2024) 102 Cal.App.5th 821, 830-832 [three-step burden shifting process]; <i>Iyere v. Wise Auto Group</i> (2023) 87 Cal.App.5th 747, 755 (<i>Iyere</i>) [same]; see also Kim Decl. ¶¶ 2-7, Ex. 1 [“MVOA” or “Arbitration Agreement”].) Plaintiffs have not disputed the existence or authenticity of the MVOA or the Arbitration Agreement therein. (See <i>Ramirez v. Golden Queen Mining Co., LLC</i>, at p. 837 [if opposing party fails to carry second-step burden, the burden shifting process stops there].) Plaintiffs have failed to meet their burden to demonstrate a defense to enforcement. (See <i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972 [burden].) Plaintiffs contend the unconscionability of the Arbitration Agreement is a defense to the enforcement of the Agreement. (See <i>Ramirez v. Charter Communications, Inc.</i> (2024) 16 Cal.5th 478, 492-493 (<i>Ramirez</i>) [unconscionability, generally].) Plaintiffs must show that the Arbitration Agreement is both procedurally and substantively unconscionable to establish
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unconscionability as a defense to enforcement of the Arbitration Agreement. (See *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1243-1244 [both procedural and substantive unconscionability must be present before court may refuse to enforce a contract based on the doctrine of unconscionability].)

Procedural Unconscionability

There is a low degree of procedural unconscionability as the arbitration agreement appears in a standardized, preprinted form contract offered by the party with superior bargaining power on a take-it-or-leave-it basis. (See Kim Decl. ¶¶ 3-4 [plaintiff would not have been able to place the order for the vehicle without agreeing to the MVOA], Ex. 1.) “ ‘[T]he adhesive nature of’ an arbitration agreement ‘is sufficient to establish some degree of procedural unconscionability.’ [Citations.]” (*Swain v. LaserAway Medical Group, Inc.* (2020) 57 Cal.App.5th 59, 67-68.) This is so notwithstanding the existence of an opt-out provision. (*Id.* at p. 69 [“an opt out provision does not insulate an arbitration agreement from a finding of procedural unconscionability”].)

Plaintiff also contends the Agreement is procedurally unconscionable because Defendant has failed to provide a copy of the applicable arbitration rules. This is not a persuasive argument for procedural unconscionability because Plaintiffs do not show anything was hidden in the rules or that the rules are substantively unconscionable. (*Nguyen v. Applied Medical Resources Corp.* (2016) 4 Cal.App.5th 232, 249; see *Baltazar, supra*, 62 Cal.4th at p. 1246.)

Substantive Unconscionability

Plaintiffs have failed to demonstrate any substantive unconscionability. (See *Ramirez v. Charter Communications, Inc., supra*, 16 Cal.5th at pp. 492-493 [although adhesion contracts are procedurally unconscionable, they nevertheless “remain valid and enforceable unless the resisting party can also show that one or more of the contract’s terms is substantively unconscionable or otherwise invalid”]; see also *id.* at pp. 494-495 [substantive unconscionability, generally].)

Specifically, Plaintiffs contend the MVOA is substantively unconscionable because (1) the arbitration provision “allows for a choice of arbitration forum – but only for the party ‘electing’ to arbitrate,” allowing “Tesla [to] ‘elect’ both to arbitrate in the first place, and choose the forum, and choose the rules”; (2) “the

arbitration-cost provisions are substantively unconscionable and clearly violate ... the minimum due process standards for consumer arbitrations,” as they serve to “discourage[] ... buyers from seeking to enforce their legal rights, as buyers are potentially faced with bearing exorbitant arbitration costs and expenses they may have to reimburse to Tesla”; and (3) the “[a]rbitration would impose prohibitive costs on Plaintiff....” (ROA 25 at pp. 6-7.) Plaintiffs also argue that the arbitration clause gives Defendant the sole discretion to select the arbitrator. (See *id.* at p. 7.)

None of these arguments is persuasive. Plaintiffs do not establish that Arbitration Agreement grants Tesla the sole discretion to select the arbitrator. The Arbitration Agreement requires arbitration of “any dispute arising out of or relating to any aspect of the relationship between [plaintiff] and Tesla ... by a single arbitrator in an arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules.” (Kim Decl. at Ex. 1, p. 3.) This requirement applies equally to both parties. The mere fact that the agreement requires arbitration with AAA does not somehow render the provision “unfair” or “ ‘ “so one-sided as to ‘shock the conscience’ ” ’ such that it is substantively unconscionable. (See *Ramirez, supra*, 16 Cal.5th at pp. 494-495.) Nothing suggests the AAA will not fairly administer the arbitration. (See *id.* at p. 506 [“Normally, we assume the arbitrator will act reasonably and in conformity with the law.”].) If anything, this argument presents an issue of procedural unconscionability rather than substantive unconscionability.

Plaintiffs’ argument regarding costs of arbitration also fails to establish substantive unconscionability. Plaintiffs contend the arbitration agreement leaves Plaintiffs “bearing exorbitant arbitration costs and expenses,” and supposedly “impose prohibitive costs on Plaintiffs”. (ROA 25 at p. 7.) But the explicit terms of the Arbitration Agreement require Defendant to bear all costs of arbitration. The Agreement states: “[Tesla] will pay all AAA fees for any arbitration, which will be held in the city or county of [plaintiff’s] residence.” (Kim Decl. at Ex. 1, p. 3.) Plaintiffs fail to address the plain language of the Arbitration Agreement, and have not shown or explained how Plaintiffs would be required to pay any costs unique to arbitration under the terms of the Arbitration Agreement. There is no basis to find the cost provisions of the Arbitration Agreement are substantively unconscionable. (See *Engalla, supra*, 15 Cal.4th at p. 972 [burden]; see also *City of Monterey v. Carrnshimba* (2013) 215 Cal.App.4th 1068, 1099 [it is not the court’s role to develop a

		party's argument for him]; <i>Cahill v. San Diego Gas & Electric Co.</i> (2011) 194 Cal.App.4th 939, 956 [same]; <i>People v. Lee</i> (2008) 161 Cal.App.4th 124, 130 ["It is not the court's function to marshal evidence for the parties or to make tactical judgments about how the parties should present their arguments."].) Defendant shall give notice.
4	Davis vs. Snell & Wilmer, LLP 2025-01522338	Demurrer to Complaint <i>Vacated. See minute order dated 7/6/26 (ROA 43).</i>
5	Diane Gibbs vs. Smith 2025-01532452	Motion for Judgment on the Pleadings Defendants Greater Pacific Roofing ("GPR") and Kevin Crowley's motion for judgment on the pleadings is DENIED as to the second cause of action for negligence as alleged against GPR, and GRANTED in all other respects. Plaintiffs Randy Morton and Diane Gibbs are granted 10 days leave to file a first amended complaint. <u>Entire complaint as alleged against Crowley.</u> As alleged against Crowley, the complaint fails to allege any facts against him in his individual capacity that give rise to any individual liability. The only allegations involving Crowley involve his statements on behalf of GPR as its CEO. (See Compl. at att. A.) <u>First cause of action for "motor vehicle."</u> The complaint fails to state facts sufficient to constitute a cause of action for "motor vehicle" negligence/liability. The complaint does not allege any facts suggesting the defendants engaged in any conduct that might give rise to such liability. <u>Second cause of action for general negligence.</u> The complaint adequately alleges a claim for negligence against GPR. (See <i>Kesner v. Superior Court</i> (2016) 1 Cal.5th 1132, 1142 [elements]; Civ. Code, § 1714, subd. (a) [duty]; <i>J'Aire Corp. v. Gregory</i> (1979) 24 Cal.3d 799, 806 [under section 1714, damages are recoverable where they result from an injury to one's person or property caused by another's negligence]; <i>Esparza v. Kaweah Delta Dist. Hospital</i> (2016) 3 Cal.App.5th 547, 555 [the "use of a Judicial Council form complaint is not a determinative factor in deciding whether or not to sustain a demurrer"; instead, the "court must examine the particular allegations ... and determine whether

		those allegations satisfy the pleading requirements established by California law”]; see also Compl. at att. A.) <u>Third cause of action for “other.”</u> The complaint fails to state facts sufficient to constitute the third cause of action for “other.” With respect to this claim, the complaint alleges, verbatim: “Defendants all agreed to turn the claim into their insurance or clients insurance and the damage would be taken care of by the insurance end or clients, and or themselves depending on which defendant you are talking too and it has not been .. [Sic.]” (Compl. ¶ 10f.) This fails to identify a theory of liability or state facts that give rise to a cognizable claim. Moving party shall give notice.
6	Farago vs. Hoag Memorial Hospital 2026-01540129	Motion for Preference Plaintiff Shirley Farago’s motion for trial preference is DENIED WITHOUT PREJUDICE. There is currently no evidence that plaintiff’s “health ... is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.” (Code Civ. Proc., § 36, subd. (a)(2); Farago Decl., ¶ 8 [stating only that plaintiff’s health is “uncertain”].) <i>Case Management Conference set for December 18, 2026 at 8:30 a.m. in Department C44.</i> Defendant Thomas Velling, M.D. shall give notice.
7	Guerrero vs. Ford Motor Company 2025-01518104	Demurrer to Amended Complaint As a preliminary matter, Code of Civil Procedure section 430.41 provides that before filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the opposing party. Counsel for Ford failed to adequately meet and confer with opposing counsel prior to filing this demurrer and motion to strike. (Code Civ. Proc. §§ 430.41(a); 435.5(a).) Sending an email is insufficient. Counsel is advised to comply with the Code prior to filing any future motions. Failure to do so could result in a denial of the motions. In the interest of judicial economy, the Court exercises its discretion to hear the demurrer and motion to strike since they have been opposed by Plaintiff on the merits.

		Defendant Ford Motor Company’s Demurrer to the sixth cause of action of the First Amended Complaint (FAC) is OVERRULED. Defendant Ford demurs to the sixth cause of action for fraudulent inducement-concealment. [T]he necessary elements of a concealment/suppression claim consist of (1) misrepresentation (false representation, concealment, or nondisclosure); (2) knowledge of falsity (scienter); (3) intent to defraud (i.e., to induce reliance); (4) justifiable reliance; and (5) resulting damage. Suppression of a material fact is actionable when there is a duty of disclosure, which may arise from a relationship between the parties, such as a buyer-seller relationship.” (<i>Dhital v. Nissan North America</i> (2022) 84 Cal.App.5th 828, 843.) <i>Dhital</i> is directly on point. In <i>Dhital</i>, the court found a cause of action for fraudulent concealment was sufficiently plead where the “plaintiffs alleged the CVT transmissions installed in numerous Nissan vehicles (including the one plaintiffs purchased) were defective; Nissan knew of the defects and the hazards they posed; Nissan had exclusive knowledge of the defects but intentionally concealed and failed to disclose that information; Nissan intended to deceive plaintiffs by concealing known transmission problems; plaintiffs would not have purchased the car if they had known of the defects; and plaintiffs suffered damages in the form of money paid to purchase the car.” (<i>Dhital</i>, supra, 84 Cal.App.5th at 844.) Similarly, Plaintiff alleges the transmission had one or more defects that can result in “(1) hesitation or delayed acceleration, (2) harsh or hard shifting, (3) jerking, (4) shuddering, or juddering; (5) surging and/or inability to control the vehicle's speed, acceleration, or deceleration, (6) symptoms requiring reprogramming of the transmission control module ("TCM") and/or powertrain control module ("PCM"), (7) failure or replacement of the transmission ("Transmission Defect").” (FAC, ¶ 62.) These conditions present a safety hazard because they can suddenly and unexpectedly cause the driver to be unable to control the speed and acceleration/deceleration of the vehicle. (<i>Ibid.</i>) The FAC further alleges Ford had knowledge of such defects prior to Plaintiff acquiring the vehicle through sources not available to consumers such as Plaintiff, including but not limited to pre-production testing data; early consumer complaints about the Transmission Defect; testing conducted by Ford in response to these complaints; warranty repair and part replacements data
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	received by Ford; as well as other internal sources of information possessed by Ford. (FAC, ¶ 63.) Prior to purchasing the Vehicle, Plaintiff reviewed Ford's marketing and advertising materials, and interacted with sales representatives. At no time prior to the purchase did GM disclose the defective nature of the 6-speed Transmission. (FAC, ¶ 65.) Ford contends Plaintiff failed to allege a fiduciary or transactional relationship that would give rise to a duty to disclose. This argument was rejected in <i>Dhital, supra</i>. The court in <i>Dhital</i>, held that a fraud claim was not barred even though there was no direct relationship between the buyer and manufacturer, because the buyer purchased from an authorized dealership, the manufacturer backed the vehicle with an express warranty, and the manufacturer's authorized dealerships were its agents for purposes of vehicle sales. (<i>Dhital, supra</i>, 84 Cal.App.5th at p. 844.) All such facts are alleged in the FAC. Accordingly, Plaintiff has stated adequate facts to support her claim for fraudulent concealment and inducement, and the demurrer to the sixth cause of action is OVERRULED. Motion to Strike Portions of Complaint Defendant Ford Motor Company's Motion to Strike is DENIED. Ford seeks to strike from the FAC any claim for punitive damages and Plaintiff's claim for civil penalties. A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. (Code Civ. Proc., § 436.) A motion to strike can be used to attack claims for damages that are not supported by the cause of action pleaded. (Code Civ. Proc., § 431.10, subd. (b)(3).) <i>Punitive Damages</i> Civil Code section 3294 provides that punitive damages may be awarded in an action for breach of an obligation not arising from contract, if the plaintiff proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. At the pleading stage, the complaint must allege facts supporting circumstances of oppression, fraud, or malice. <i>See</i>
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		<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6 (allegations that defendant was guilty of “oppression, fraud and malice” could not be stricken where the complaint contained sufficient facts to support such allegation.). Defendant argues that Plaintiff failed to identify a specific managing agent of the corporation that ratified the fraud. In <i>Dhital</i>, the court held that the manufacturer’s authorized dealership were its agent for purposes of the sale of its vehicles to the consumers, and that this relationship was sufficient to establish a duty to disclose – without requiring the identification of a specific individual. Liability was established through the manufacturer’s agents. As ruled above, Plaintiff has alleged sufficient facts to state a cause of action for fraudulent concealment, and thus grounds for an award of punitive damages. Accordingly, the motion to strike punitive damages is DENIED. <i>Civil Penalties</i> Ford argues Plaintiff’s request for civil penalties should be stricken because she failed to allege she complied with the new notice requirements for the Song-Beverly cases established by CCP § 871.24(a). But paragraph 23 of the FAC states that “Plaintiff made a request for repurchase of the Subject Vehicle compliant with the requirements of CCP 871.24. Defendant has failed to timely comply with its obligations under the Act.” Such allegation is sufficient to comply with Section 871.24. Accordingly, the motion to strike civil penalties is DENIED. Clerk to give notice.
8	Libertucci vs. Cooper 2023-01370576	Motion for Sanctions No tentative. Order to Show Cause re: Failure to Appear
9	Wei vs. Sarkis 2025-01509812	Demurrer to Complaint Defendants Anthony M. Sarkis and Shivangini Chudhary’s

		demurrer to the complaint of Yilu Amanda Wei is overruled in part and sustained in part as follows: SUSTAINED as to the 2nd cause of action for account stated SUSTAINED as to the 3rd cause of action for damages OVERRULED as to the 4th cause of action for promissory estoppel. SUSTAINED as to the 5th cause of action for failure to mitigate damages. SUSTAINED as to the 6th cause of action for fraud SUSTAINED as to the 7th cause of action for unjust enrichment. SUSTAINED as to the 8th cause of action for intentional infliction of emotional distress SUSTAINED as to the 9th cause of action for negligence SUSTAINED as to the 10th cause of action for receiving stolen property. SUSTAINED as to the 11th cause of action for breach of the covenant of quiet enjoyment. Wei shall have ten days leave to amend. Defendant Sarkis to give notice.
10	Casate vs. Allview Real Estate 2026-01542936	1. Demurrer to Complaint 2. Motion to Strike Complaint 3. Case Management Conference <i>Continued. See minute order dated 7/14/26 (ROA 47).</i>